

PARLIAMENT OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

MOTOR TRAFFIC (AMENDMENT) ACT, No. 5 OF 1998

[Certified on 27th March, 1998]

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L.D.—O. 66/96

AN ACT TO AMEND THE MOTOR TRAFFIC ACT

BE it enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows :—

Short title.

1. This Act may be cited as the Motor Traffic (Amendment) Act, No. 5 of 1998.

Insertion of new sections 213A and 213B in Chapter 203.

2. The following new sections are hereby inserted immediately after section 213 of the Motor Traffic Act and shall have effect as sections 213A and 213B respectively of that Act :-

"National Council for Road Safety.

213A. (1) There shall be a National Council for Road Safety consisting of a Chairman and not more than seventeen other members appointed by the Minister and consisting of—

(*a*) a representative of the Ministry of the Minister in charge of the subject of Education, appointed after consultation with the relevant Minister ;

(*b*) a representative of the Ministry of the Minister in charge of the subjects of Finance and Planning, appointed after consultation with the relevant Minister ;

(*c*) a representative of the Ministry of the Minister in charge of the subjects of Provincial Councils and Local Government appointed after consultation with the relevant Minister ;

(*d*) a representative of the Ministry of the Minister in charge of the subject of Highways, appointed after consultation with the relevant Minister ;

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(*e*) a representative of the University of Moratuwa deemed to have been established under the Universities Act, No. 16 of 1978, appointed after consultation with the University Grants Commission established under that Act ;

(*f*) a representative of the Urban Development Authority established by the Urban Development Authority Act, No. 41 of 1978, appointed after consultation with the relevant Minister ;

(*g*) a representative of the Road Development Authority established by the Road Development Authority Act, No. 73 of 1981, appointed after consultation with the relevant Minister ;

(*h*) a representative of the Ministry of the Minister ;

(*i*) a representative of the National Transport Commission established by the National Transport Commission Act, No. 37 of 1991 ;

(*j*) a representative of the Department of Motor Traffic ;

(*k*) a representative of the Sri Lanka Central Transport Board established by the Transport Board Law, No. 19 of 1978 ;

(*l*) a representative of the Ceylon Society for the Prevention of Accidents ;

(*m*) a representative of the Transport Medical Institute ;

(*n*) a representative of the Automobile Association of Ceylon, established by Automobile Association of Ceylon (Incorporation) Act, No. 19 of 1957 ;

(*o*) a representative of the Department of Police, appointed after consultation with the Inspector-General of Police ;

(*p*) a representative of the Colombo Municipal Council, appointed after consultation with the Mayor of that Council ; and

(*q*) the Controller of Insurance or his representative.

(2) Every member of the National Council for Road Safety shall, unless he vacates office earlier by death, resignation by letter in that behalf addressed to the Minister or removal from office by the Minister under subsection (3), hold office for such period not exceeding three years as may be specified by the Minister in his letter of appointment. Any member vacating office by effluxion of time shall be eligible for reappointment.

(3) The Minister may remove from office any member of the National Council for Road Safety without assigning any reason therefor.

(4) In the event of the vacation of office of any member the Minister shall appoint another person to succeed such member and the member so appointed shall hold such office for the unexpired period of the term of office of his predecessor.

(5) The Chairman of the National Council for Road Safety may summon meetings of such Council whenever he may deem it necessary, so however, that he shall summon a meeting thereof at least once in every three months :

Provided however that, such Chairman shall summon a meeting of such Council, whenever he is requested in writing to do so by not less than six members, of such Council.

(6) The quorum for any meeting of the National Council for Road Safety shall be eight.

(7) Regulations may be made providing for the conduct of business by the National Council for Road Safety and prescribing the procedure to be followed at meetings of such Council. Subject to such regulations, and the provisions of sub-section (6), the National Council for Road Safety may regulate its own procedure.

(8) No act or proceeding of the National Council for Road Safety shall be invalid by reason only of the existence of any vacancy therein or any defect in the appointment of any member thereof.

(9) The Minister may give the National Council for Road Safety such general or special directions in writing as to the discharge of its functions and the National Council for Road Safety shall give effect to such directions.

(10) The functions of the National Council for Road safety shall be as prescribed.

Road Safety Fund.

213B. (1) Every insurer or person who issues a policy of insurance or security, as the case may be, in respect of third party risks, under Part VI of this Act, shall deduct from the premium paid to him for such policy of insurance or security, as the case may be, such sum as is equal to the prescribed sum and shall cause the sum so deducted to be transmitted to the Fund established under sub-section (2).

(2) There shall be a Fund to be called the Road Safety Fund (hereinafter in this section referred to as the "Fund"). The Fund shall be administered and managed by the National Council for Road Safety.

(3) There shall be paid into the Fund–

(*a*) all sums transmitted to the Fund under subsection (1); and

(*b*) all sum sreceived by the Fund as donations or grants.

(4) There shall be paid out of the Fund–

(*a*) all sums required to implement programmes for the promotion of Road Safety and accident prevention or to carry out other prescribed activities, approved by the National Council for Road Safety;

(*b*) all sums required to provide financial assistance to persons killed or injured as a result of motor vehicle accidents or their dependants, in instances in which such motor vehicles have not been identified; and

(*c*) all sums required to meet the administrative expenses of the National Council for Road Safety.

(5) For the avoidance of doubt, it is hereby declared that all sums donated to the Fund are sums donated to a fund established by the Government, within the meaning of section 31 of the Inland Revenue Act, No. 28 of 1979.".

3. In the event of any inconsistency between the Sinhala and Tamil texts of this Act, the Sinhala text shall prevail. **Sinhala text to prevail in case of inconsistency.**

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